Marshall & Dominguez LLP

Pearland, TX
Phone 281-555-1704

Settlement Demand

November 24, 2024

Claims Department
Harbor Point Mutual Auto Insurance

Re: Claim C-1417 - Demand for settlement

Dear Claims Representative:

Our office represents Corey Petty in connectoin with the motor vehicle collision that occurred on June 27, 2024. Our client was lawfully making a left turn when your insured failed to yield the right of way and struck the driver's side of our client's vehicle. The police report documents the other driver's admission at the scene that he did not see our client's car before impact.

As a result of the collision, our client suffered a serious knee injury. Following the crash, our client was transported for emergency evaluation and has since undergone a course of physical therapy, with ongoing treatment recommended by the treating orthopedic physician. Our client has been unable to work full duty and has incurred substantial medical bills, along with lost wages and out-of-pocket expenses related to transportation and care.

Liability in this matter is clear. Your insured violated the duty to yield on a left-turn-across-traffic situation, and no reasonable fact finder is likely to assign our client any meaningful share of fault. Our client has been fully cooperative throughout the claims process and has provided all requested records.

To resolve this matter without litigation, we demand payment of $89,000.00, inclusive of all damages described above. This offer will remain open for thirty days from the date of this letter. If we do not receive a satisfactory response within that period, we will file suit without further notice.

Expert review: Janet Williams, neurologist

Sincerely,

Nina Stewart
Marshall & Dominguez LLP